

Separation/Termination Policy

Objective

The objective of a Separation Policy of Devstringx Technologies Pvt Ltd. is to ensure that employee separation, including voluntary and involuntary terminations, including an unfortunate event of death of an employee, are managed in a professional manner with minimal disruption to the workplace.

Scope and Applicability

This Separation Policy deals with the procedures to be followed both by the employee who is exiting the Company and relevant stakeholders within Devstringx Technologies Pvt Ltd.

This policy applies to all employees of Devstringx Technologies Pvt Ltd.

Policy/Process

- **Voluntary Separation**

A voluntary termination of employment occurs when an employee initiates separation policy by its own including intent to retire, to his/her Manager and is accepted by the Manager.

1. It is highly recommended that the employee should have a formal discussion initially with the Manager about his/her intent to resign. If the employee still wishes to exit from the organization, then a formal letter of resignation addressed to the Manager is required.
2. Resignation needs to be given within the working hours of the organization i.e 10 AM IST to 7 PM IST else it will be considered for next day.
3. Employees are required to provide the separation notice as specified in their respective employment contracts and offer letter.
4. It's mandatory to keep the resignation confidential as per company policies, sharing it with other employees will be considered against the company policies.

5. The employee is expected to serve his/ her full Notice Period.
6. During notice period an employee is not allowed to take leaves. The only exception is for sick leaves and that has to be approved by the team manager. An Employee may have to submit a medical certificate for long sick leaves. No personal leaves or vacation leaves are allowed to utilize. HR may also ask an employee to extend the notice period by no. of sick leaves taken in the notice period. For example if you took 2 sick leaves in the notice period , then your notice period will be 90 days plus 2 days.
7. Resignation will only be accepted if all policies are properly fulfilled for example if you have provided the commitment of 1 year then you can't resign up to that commitment period, you can resign after that period. If this is not honored then relieving will not be done.
8. HOW TO RAISE SEPARATION REQUEST -
Employee has to login into his/her CloveHR account and go into the employment record > Raise the Separation request by filling the required form. Separation process will be automatically initiated once the form is submitted.
9. Manager will provide a resignation acknowledgement in lieu of the resignation request in the coming week(s).
10. An employee has to serve the notice period from the organization working office location unless written confirmation is taken from the reporting manager for the exception.
11. Employees have to coordinate with various internal departments for returning company property and assets and obtain NOC from each of them through the email.

- **Involuntary Separation**

An involuntary termination of employment is a management-initiated dismissal with or without cause, including a layoff.

Involuntary dismissal may include the following:

- Discharge for cause
- Discharge without cause

- **Discharge for cause**

It refers to immediate termination of employment due to an employee's misconduct. Any kind of disciplinary action or progressive discipline that results in termination may be considered "for cause". Other wrongful behaviors or actions that result in immediate dismissal are also considered "for cause". Examples of such termination of employees include circumstances where an employee:

1. Breach of confidentiality or a loss of confidence by an act against the interest of organization or the management of the Company.
2. Is discovered guilty of fraud, embezzlement or other kinds of illegal actions against the company
3. Is guilty of discriminatory behavior or harassment
4. Is guilty of unlawful or immoral behavior on the job.
5. Is guilty of willful neglect of job responsibilities.
6. Is discovered to have caused intentional damage to the company's assets.
7. Continuously disregards company policy.
8. Your absence for a continuous period of seven working days without prior approval of your manager/supervisor (including overstay of leave), would be deemed to be termination of employment by you without notice. In such circumstances the company shall, in addition to all other rights/ remedies available, have the right to deduct/ claim appropriate notice period salary from you.
9. As and when the Company comes to know of any conviction by the Court of Law during the tenure of your service with us or conviction and/ or any bad record in the past under a previous employer, or because of your giving false information at the time of your appointment.

Process

1. Before any action is taken to involuntarily discharge an employee, the employee's Manager must request a review by the termination review board, which consists of the CEO of Devstringx Technologies Pvt Ltd, Head of HR, and employee's Manager.
2. An employee may be asked to leave the company as per the decision taken by the Management.
3. The employee's manager should initiate the exit process and notify HR and payroll of the last day worked by the employee.

- **Discharge without cause**

It can occur when the company decides that the services of an employee are no longer needed. In general, this does not refer to an employee's conduct. Reasons for discharge

without cause may be layoffs, rearrangement of a department or redefining of a position. In cases where an employee must be terminated without cause, the company is obliged to give notice a specified amount of time prior to the date of termination depending on time of service, age of employee or position.

- **Death of Employees**

A termination due to the death of an employee will be made effective as of the date of death.

Process

1. Upon receiving notification of the death of an employee, the employee's manager should immediately notify HR.
2. HR will coordinate for documentation and explain the next steps for exit.
3. The benefits administrator will process all appropriate benefit payments from the various benefits plans.
4. The employee's manager should ensure that the payroll office receives the deceased employee's incentive/special payment/bonus details if any.

- **Health Insurance**

Medical insurance coverage/ESIC (if any) terminates on the day of the month the employee separates from the Company.

- **Return of Property**

Employees must return all company property at the time of separation, including cell phones, keys, laptops, identification cards, etc. Failure to return any item will result in deductions from the employee's final paycheck.

- **Payout**

- The Full and Final amount is paid to the employee within 60 days after recovering all advances/outstanding dues, if any of an employee.
- Referral Bonus or variable amount or any such component which is not fixed will not be payable in the event of an employee resigning before the payout date.

Special Circumstance and Exception

1. Any Deviation from this policy has to be approved by the HR department.
2. Completion of full and final settlement and release of relieving letter will be subject to the concerned employee having completed handing over formalities to the satisfaction of his immediate reporting authority and having obtained clearance from all concerned departments as given in the clearance form.